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December 30, 2015					
FEDERAL MARITIME COMMISSION					

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

ORDER STRIKING LETTER MOTION

On December 29, 2015, counsel for Complainants sent an email to the email address for this office with an attached "Status Report and Request for Notice of Default." Counsel copied the Commission's Secretary on the email.

On November 24, 2015, the undersigned issued an Initial Order controlling certain aspects of this proceeding. *Inter alia*, the Initial Order states: "Any request for action by the Commission or presiding officer must be made by motion, not by letter or email request." *Igor Ovchinnikov, Irina Rzaeva, and Denis Nekipelov v. Michael Hitrinov a/k/a Michael Khitrinov, Empire United Lines Co., Inc., and Carcont, Ltd.*, FMC No. 15-11, Order ¶ 14 (Nov. 24, 2015) (Initial Order). I note that there is no certificate of service in the email or the attachment indicating that the Status Report and Request for Notice of Default was served on Respondents. *See* 46 C.F.R. § 502.114. In consideration of the foregoing, it is hereby

ORDERED that the Status Report and Request for Notice of Default be **STRICKEN** for failure to comply with the Commission's Rules of Practice and Procedure and the Initial Order.



Clay G. Guthridge
Administrative Law Judge